

Bhanu Dutt Pandey v. State of U.P. and 4 Others

Allahabad High Court · Division Bench · 2 November 2023 · 2023:AHC:210087-DB · Writ - C No. 31109 of 2023 · **Writ disposed; EE to fix easy installments under Clause 6.14 if approached within a week.**

HEADNOTE

Where the outstanding electricity bill stands quantified and the consumer, dropping his challenge to the demand, seeks only easy installments under Clause 6.14 of the U.P. Electricity Supply Code, 2005, and the licensee agrees that the Executive Engineer will fix them if approached, the writ is disposed of by consent. If the petitioner approaches the Executive Engineer, Urban Electricity Distribution Division, Prayagraj, within a week with a certified copy of the order, easy installments are to be fixed keeping Clause 6.14 in view. The Court did not itself settle the number or terms of the installments, and did not examine the check-meter reading, the 2017 demand, or the earlier Forum and Ombudsman orders.

FACTUAL SUMMARY

Bhanu Dutt Pandey held a 2 KW connection from 2014. He complained that no bill was issued until February 2017, when Rs.1,36,811 was demanded. The Electricity Consumer Grievance Redressal Forum, Prayagraj, in Case No. 278 of 2021, by consent on 28 August 2021, directed a check meter and modification of the bill. The Electricity Ombudsman repeated that direction on 3 February 2023. A check meter installed on 11 March 2023 recorded 98 units in 39 days. Supply was disconnected on 28 February 2023. He sought check-meter bills from March 2017.

On 13 September 2023 the Court directed restoration forthwith if he deposited Rs.50,000 that day, and called for a reply. On 2 November 2023 the Executive Engineer, Urban Electricity Distribution Division, Prayagraj, by instructions dated 11 September 2023, put the dues at Rs.1,44,950 for 2274 units, noting only Rs.14,515 paid in February 2019. Counsel said the petitioner had no grievance once the bill was quantified, and sought easy installments under Clause 6.14 of the U.P. Electricity Supply Code, 2005. The licensee's counsel agreed the Executive Engineer would fix them if approached.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Easy installments under Clause 6.14 once the bill is quantified and no longer disputed

QUESTION

Where the consumer no longer disputes a quantified electricity bill and both sides agree that easy installments may be fixed under Clause 6.14, may the writ be disposed of by directing the Executive Engineer to fix them if the consumer approaches within a week?

HOLDING

Yes. The Executive Engineer's instructions dated 11.9.2023 quantified the outstanding at Rs.1,44,950 for 2274 units. Counsel for the petitioner stated that he had no grievance once the bill was quantified and would clear the dues if easy installments were fixed under Clause 6.14 of the U.P. Electricity Supply Code, 2005. Counsel for the licensee stated that if the petitioner approached the Executive Engineer, Urban Electricity Distribution Division, Prayagraj, easy installments would be fixed under that clause. With the consent of the parties the Court held that no useful purpose would be served in keeping the petition pending, and directed that if the petitioner approaches that Executive Engineer within a week with a certified copy of the order, easy installments be fixed keeping Clause 6.14 in view. The writ was disposed of on that leave. The Court did not itself fix the installments or revisit the quantified demand. ¶ 3-6

QUALIFIER

The direction is conditional on an approach within a week. Fixation is for the Executive Engineer, keeping Clause 6.14 in view. The Court did not hold that installments are available as of right, or state their number or terms.

FLAG The source PDF joins two orders in Writ-C No. 31109 of 2023. The operative disposal is 2.11.2023 (paras 1-6); paras in this unit are of that order. The order of 13.9.2023 directed restoration forthwith if Rs.50,000 was deposited that day and listed the matter afresh on 16.10.2023; it cites no Code clause. Paragraph 2 of the 2.11.2023 order misprints the instructions date as 11.9.203; paragraph 5 states 11.9.2023. Neutral Citation No. 2023:AHC:210087-DB is printed immediately before the 2.11.2023 cause title. No precedent is cited. Respondent no. 5's counsel placed the Executive Engineer's instructions; the 13.9.2023 prayer had sought the bill from respondent nos. 3 and 4.

PRINCIPLE TAGS

installment-payment-clause-6.14 Once the bill was quantified and the consumer sought only easy installments, the writ was disposed of by consent. The Executive Engineer was directed to fix them, keeping Clause 6.14 in view, if the petitioner approached within a week. Entitlement, number, and terms were not decided in the writ. ¶ 3-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 2017 DEMAND OF RS.1,36,811, OR THE LATER BILL OF RS.1,44,950 FOR 2274 UNITS, SHOULD HAVE BEEN RECAST ON THE CHECK-METER READING OF 98 UNITS IN 39 DAYS, AND WHETHER THE FORUM ORDER OF 28.8.2021 AND THE OMBUDSMAN ORDER OF 3.2.2023 HAD BEEN COMPLIED WITH

Counsel stated that the petitioner had no grievance once the outstanding was quantified. The Court did not examine the check meter or those orders. ¶ 13.9.2023, 2-4; 2.11.2023, 3-5

NOT DECIDED — THE NUMBER, PERIODICITY, AND OTHER TERMS OF THE INSTALLMENTS, AND WHETHER THE PETITIONER WAS ENTITLED TO THEM UNDER CLAUSE 6.14

Left to the Executive Engineer, Urban Electricity Distribution Division, Prayagraj, if approached within a week, keeping Clause 6.14 in view. ¶ 4-6

NOT DECIDED — WHETHER THE RS.50,000 DIRECTED ON 13.9.2023 WAS DEPOSITED AND WHETHER SUPPLY, DISCONNECTED ON 28.2.2023, WAS RESTORED

The 2.11.2023 order does not record compliance with the interim direction. ¶ 13.9.2023, 4-5